

Line 8

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

CAMPBELL HIGH SCHOOL TEACHERS
ASSOCIATION, CTA/NEA,

Petitioner,

v.

CAMPBELL UNION HIGH SCHOOL
DISTRICT,

Respondent.

Case No. 24CV453762

**ORDER GRANTING CAMPBELL HIGH
SCHOOL TEACHERS ASSOCIATION,
CTA/NEA’S PETITION TO COMPEL
ARBITRATION**

Petitioner Campbell High School Teachers Association, CTA/NEA's ("Association") motion to compel Respondent Campbell Union High School District ("District") to arbitration came on for hearing before the Court on April 4, 2025. Pursuant to California Rule of Court 3.1308, the Court issued its tentative ruling on April 3, 2025.

I. Alleged Facts

District is a public school district in Campbell, California that employs numerous teachers in grades nine through twelve. (Declaration of Kim McCarthy ("McCarthy Decl."), ¶2.) The Association is a labor union representing these teachers. (McCarthy Decl., ¶3.) The parties have a collective bargaining agreement for the period July 1, 2019 through June 30, 2022, ("CBA") the period relevant to the underlying dispute.

Article 10 of the CBA contains a grievance procedure. "Grievance" is defined as "a claim by the aggrieved that he or she has been adversely affected by a violation, misinterpretation or misapplication of this Agreement." (McCarthy Decl., Ex. A, p. 11.) The stated purpose of the grievance procedure "is to secure, at the lowest possible administrative level, solutions to grievances. Both parties agree that these proceedings will be kept as informal and confidential as may be appropriate at any level of the procedure." (*Id.*) The final step in the grievance procedure is arbitration:

3. Step3-Arbitration

If the grievant is not satisfied with the disposition of the grievance at Step 2 within fifteen (15) days CHSTA may submit the grievance to arbitration. The parties shall request a list of seven (7) arbitrators from the California State Mediation and Conciliation Services within ten (10) days of the Association submitting the grievance to arbitration. A representative of the Association and the District's representative shall select the arbitrator from the list by eliminating names until one name remains. The first option of elimination shall alternate. The one remaining name shall be the arbitrator. The parties shall make every good faith effort to strike rules within ten (10) days of receipt of the list

1 unless an extension of time has been agreed to in writing.

2 If any question arises as to the arbitrability of the grievance, such
3 question will be heard by the arbitrator prior to proceeding to the merits.
4 The arbitrator shall have no authority to add to, subtract from, or modify
5 the terms of this Agreement, and the arbitrator shall interpret this
6 Agreement in accordance with accepted arbitral standards of contract
7 interpretation.

8 If any party requests a transcript of the proceedings, that party shall bear
9 the full costs for that transcript. If the parties request one transcript, the
10 total cost of the transcript shall be divided equally between the District
11 and the aggrieved.

12 Once the arbitrator has been selected, hearings shall commence at the
13 convenience of the arbitrator. The arbitrator's decision will be in writing
14 and will set forth the arbitrator's findings of fact, reasoning and
15 conclusions of the issues submitted. The arbitrator will be without power
16 or authority to make a decision which requires the commission of an act
17 prohibited by law or which is violative of the terms of this Agreement.
18 However, it is agreed that the arbitrator is empowered to include in any
19 award such financial reimbursement or other remedies the arbitrator
20 judges to be proper. The award of the arbitrator will be final and binding
21 on the parties and a copy will be submitted to the Superintendent, the
22 aggrieved, and the Association.

23 All costs for the services of the arbitrator, including, but not limited to,
24 per diem expenses, the arbitrator's travel and subsistence expenses, and
25 the cost of any hearing room will be borne equally by the District and the
26 aggrieved. All other costs will be borne by the party incurring them.

27 (McCarthy Decl., Ex. A, p. 12-13.)

28 In the fall of 2020, Bryce Hadley, an English teacher at the District's Westmont High School,

1 taught a lesson on Nigerian author Chinua Achebe's book *Things Fall Apart* that required students
2 to read an essay by Achebe on racism in Joseph Conrad's *Heart of Darkness*, which quotes Conrad's
3 use of the N-word. (McCarthy Decl., ¶8.) After warning students that the essay contained racist
4 language, Mr. Hadley read a portion of the essay aloud. (*Id.*) The District received a complaint about
5 this lesson and gave Mr. Hadley a Notice of Unprofessional Conduct on November 20, 2020, which
6 the District claims is described in Education Code section 44930 ("45/90-Day Notice"). (McCarthy
7 Decl., ¶8, Ex. B.) The parties thereafter engaged in the first two steps of the grievance process
8 outlined in CBA Article 10. After the parties scheduled mediation, District informed Association it
9 would not mediate the 45/90-Day Notice because it was not a "grievance" as defined by the CBA.
10 This petition followed.

11 **II. Legal Standard and Analysis**

12 In a motion to compel arbitration, the Court must determine "(1) whether there is a valid
13 agreement to arbitrate between the parties; and (2) whether the dispute in question falls within the
14 scope of that arbitration agreement." (*Bruni v. Didion* (2008) 160 Cal. App. 4th 1272, 1283 (citations
15 omitted).) "The petitioner bears the burden of proving the existence of a valid arbitration
16 agreement by a preponderance of the evidence, and a party opposing the petition bears the burden
17 of proving by a preponderance of the evidence any fact necessary to its defense. [Citation.] In these
18 summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations,
19 and other documentary evidence, as well as oral testimony received at the court's discretion, to
20 reach a final determination. [Citation.]" (*Bruni*, 160 Cal. App. 4th at 1282 (citations omitted).)

21 The District does not dispute that the CBA contains an arbitration provision. The District's
22 argument is that the 45/90 Day Notice is a creature of statute and therefore not subject to
23 arbitration under the CBA. The Association argues (a) the 45/90 Day Notice is a grievance, but (b)
24 in any event, the CBA's express language requires the question of whether or not it is a grievance be
25 determined by the arbitrator.

26 "[P]arties can agree to arbitrate 'gateway' questions of 'arbitrability,' such as whether the
27 parties have agreed to arbitrate or whether their agreement covers a particular controversy." (*Rent-*
28 *A-Center, West, Inc. v. Jackson* (2010) 561 U.S. 63, 68–69.) Similarly, "[p]arties to an arbitration

1 agreement may agree to delegate to the arbitrator, instead of a court, questions regarding the
2 enforceability of the agreement.” (*Pinela v. Neiman Marcus Group, Inc.* (2015) 238 Cal.App.4th 227,
3 239 .) “Under California law, it is presumed the judge will decide arbitrability, unless there is clear
4 and unmistakable evidence the parties intended the arbitrator to decide arbitrability.” (*Nelson v.*
5 *Dual Diagnosis Treatment Center, Inc.* (2022) 77 Cal. App. 5th 643, 654 (internal citations and
6 quotations omitted).) “The answer to “the question ‘who has the primary power to decide
7 arbitrability’ turns upon what the parties agreed about *that* matter.” (*First Options of Chicago, Inc. v.*
8 *Kaplan* (1995) 514 U.S. 938, 943 [131 L. Ed. 2d 985, 115 S. Ct. 1920] (*First Options*), original italics.)
9 “When deciding whether the parties agreed to arbitrate a certain matter (including arbitrability),
10 courts generally ... should apply ordinary state-law principles that govern the formation of
11 contracts.” (*Id.* at p. 944.) (*Nelson v. Dual Diagnosis Treatment Center, Inc.* (2022) 77 Cal. App. 5th
12 643, 654.)

13 “There are two prerequisites for a delegation clause to be effective. First, the language of the
14 clause must be clear and unmistakable. [Citation.] Second, the delegation must not be revocable
15 under state contract defenses such as fraud, duress, or unconscionability.” (*Tiri, supra*, 226
16 Cal.App.4th at p. 242; see also *Rent-A-Center, supra*, 561 U.S. at pp. 68, 69, fn. 1.) The “clear and
17 unmistakable” test reflects a “*heightened* standard of proof” that reverses the typical presumption
18 in favor of the arbitration of disputes. (*Ajamian v. CantorCO2e, L.P.* (2012) 203 Cal.App.4th 771,
19 787 (*Ajamian*).) (*Aanderud v. Superior Court* (2017) 13 Cal. App. 5th 880, 892.) “To be effective, any
20 attempted delegation cannot be equivocal or ambiguous. Instead, the issue of arbitrability
21 presumptively remains with the court except “where ‘the parties *clearly and unmistakably* provide
22 otherwise.” (*Brennan v. Opus Bank* (9th Cir. 2015) 796 F.3d 1125, 1130 (*Brennan*);
23 accord, *Dennison, supra*, 47 Cal.App.5th at p. 209.) “[C]ourts should not assume that the parties
24 agreed to arbitrate arbitrability unless there is ‘clea[r] and unmistakabl[e]’ evidence that they did
25 so.” (*First Options, supra*, 514 U.S. at p. 939.) (*Nelson v. Dual Diagnosis Treatment Center, Inc.* (2022)
26 77 Cal. App. 5th 643, 655.)

27 The CBA states: “If any question arises as to the arbitrability of the grievance such question
28 will be heard by the arbitrator prior to proceeding to the merits.” District argues this does not

1 clearly delegate the question of whether the 45/90 Day Notice is arbitrable because it is not a
2 “grievance.” The Court is not persuaded.

3 First, “grievance” is defined as “a claim by the aggrieved that he or she has been adversely
4 affected by a violation, misinterpretation or misapplication of this Agreement.” And an “aggrieved”
5 “may be one or more members of the unit asserting a grievance, or the Association.” When this
6 language is read in the context of Article 10 as a whole, it is plain that the parties’ intent at the time
7 of entering the CBA was for any Association members’ claim that the District violated the CBA be
8 subject to arbitration.

9 Next, even if the Court is incorrect about that, the parties clearly and unequivocally delegated
10 that determination to the arbitrator. Whether or not the 45/90 Day Notice is a “grievance” requires
11 examination and interpretation of the CBA, a task the parties unequivocally delegated to the
12 arbitrator.

13 Accordingly, Petitioner’s motion to compel arbitration is GRANTED.

14 This case is stayed. The parties shall appear for an arbitration status hearing on October 9,
15 2025 at 10:00 a.m. in Department 6.

16 **IT IS SO ORDERED.**

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18 Date: _____

19 Hon. Evette D. Pennypacker
20 Santa Clara Superior Court Judge
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Line 11

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

RALPH JACKSON,

Plaintiff,

v.

COUNTY OF SANTA CLARA; and DOES 1-25,

Defendants.

Case No. 23CV412192

**ORDER SUSTAINING DEMURRER TO
SECOND AMENDED COMPLAINT**

Defendant County of Santa Clara’s (“County”) demurrer to plaintiff Ralph Jackson’s Second Amended Complaint (“SAC”) came on for hearing before the Court on March 25, 2025. Pursuant to California Rule of Court 3.1308, the Court issued its tentative ruling on March 24, 2025.

I. Alleged Facts

According to the SAC, Plaintiff is an African American who suffers from a disability within the meaning of the Fair Employment and Housing Act (“FEHA”). (SAC, ¶ 8.) Beginning in 2005, Plaintiff worked for the County’s Probation Department at James Ranch and wrote reports, had regular interactions with the public and court system through drafting and preparing progress reports, until he was forced to resign in October 2021. (SAC, ¶ 9.) In April 2020, he requested accommodations to work from home or to be transferred to position that would allow him to work from home or stay in his current position and “avoid or limit in person contact” as an accommodation for his disability and being in the high-risk category for COVID-19. (SAC, ¶¶ 11-